

complaint in response to the demurrer, leave to amend is liberally allowed as a matter of fairness, unless the complaint shows on its face that it is incapable of amendment.” (*Eghtesad v. State Farm General Ins. Co.* (2020) 51 Cal.App.5th 406, 412 quoting *City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 747.)

The Complaint does not show on its face that it is incapable of amendment. As such, Plaintiff is granted leave to amend.

Conclusion

Based on the above, Defendant CSD’s demur is **overruled**. Ms. Bozarth’s demur is **sustained**. Plaintiff is granted leave to amend as to the claims against Ms. Bozarth. Plaintiff shall file an amended complaint within 10 days of notice of entry of this Order.

20. 9:00 AM CASE NUMBER: C25-03121
CASE NAME: JACOB CANALE VS. KELLY BOZARTH
*HEARING ON MOTION IN RE: TO STRIKE PLTFs COMPLAINT
FILED BY: BOZARTH, KELLY
TENTATIVE RULING:

Before the Court is Defendants’ Center for Social Dynamics, LLC, and Kelly Bozarth’s Motion to Strike Plaintiff’s Complaint.

Defendants’ unopposed Request for Judicial Notice is **granted**.

Factual Allegations

See Line 19.

Scope of Motion

Defendants seek to strike two categories of allegations, those related to (1) Plaintiff’s PAGA claim generally, and (2) the claims against Defendant Bozarth. The Court will address each category separately.

Legal Standard

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part of the pleading. (Code Civ. Proc. § 435 (b)(1); Cal. Rules of Court, Rule 3.1322(b).)

The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of the pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Cal. Code Civ. Proc. §§ 436(a)-(b); *Stafford v. Schultz* (1954) 42 Cal.2d 767, 782 [“matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”].) An “irrelevant” matter includes allegations not essential to

the claim or defense, as well as allegations “neither pertinent to nor supported by an otherwise sufficient claim or defense.” (CCP§ 431.10 (b).)

Analysis

PAGA Allegations

Defendants indicate that they are seeking to strike allegations in the complaint to the extent that Plaintiff seeks relief for any time prior to October 1, 2024, because of the *Gibson* PAGA Settlement – discussed below. (Notice at 1:7-11.)

The *Gibson* Action

On March 2, 2023, a class action complaint was filed against CSD in San Mateo Superior Court (the “*Gibson* Action”). (RJN Ex. 1.) The *Gibson* Action included eight causes of action that involved seven Labor Code violations, namely failure to: (1) pay minimum wages; (2) pay overtime; (3) provide meal periods; (4) authorize and permit rest breaks; (5) reimburse necessary business expenses; (6) timely pay final wages; and (7) provide accurate itemized wage statements. (*Ibid.*) It also included a UCL claim. (*Ibid.*) An amended Complaint was filed in the *Gibson* action in May 2023, alleging a PAGA cause of action based on these Labor Code violations. (RJN Ex. 2.)

The parties to the *Gibson* Action were able to come to a final settlement to resolve the claims asserted therein. The San Mateo Court granted final approval of the *Gibson* Action PAGA claims on July 24, 2025. (RJN Ex. 4.)

Defendants argue that res judicata bars Plaintiff’s claims and supports striking the relevant paragraphs.

“The doctrine is applicable ‘if (1) the decision in the prior proceeding is final and on the merits; (2) the present proceeding is on the *same cause of action* as the prior proceeding; and (3) the parties in the present proceeding or parties in privity with them were parties to the prior proceeding.’” (*Villacres v. ABM Industries Inc.* (2010) 189 Cal.App.4th 562, 577 citation omitted.) “Res judicata may not apply if the subsequent action seeks to vindicate a public interest and the prior action served only a private interest.” (*Id.* at 581.)

Defendants are correct that to the extent the current complaint encompasses claims raised in the *Gibson* Action and settled as part of the *Gibson* PAGA Settlement, Plaintiff will be precluded from pursuing those claims in this action.

Scope of the *Gibson* PAGA Settlement

The *Gibson* PAGA Settlement related to a claims period of March 2, 2022, through September 30, 2024. (*Ibid.*) “Aggrieved employees’ in the *Gibson* PAGA Settlement were defined as “all current and former non-exempt hourly Clinical Leaders, Clinical Directors, and Behavioral Specialists employed by Defendants during the PAGA Period.” (*Ibid.*)

Defendants assert that “Plaintiff in the instant Complaint is himself Behavioral Specialist and a member of the *Gibson* Action.” (Mtn. at 2:23-24.) They provide no citation for this statement. They also note that the Complaint in this action alleges that Plaintiff was employed from August 2023 to approximately January 2025. (see e.g. ¶ 21.) The PAGA claim applies to “all times herein set forth” related to violations committed against Plaintiff “during his time of employment....” (e.g. ¶¶ 13, 16, 20.) Defendants argue that because Plaintiff’s claims prior to October 1, 2024, overlap with the *Gibson* PAGA Settlement they are foreclosed as a matter of law. (Mtn. at 4:18-19.)

“The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Code Civ. Proc. § 437(a).)

While Defendant asserts that Plaintiff Jacob Canale is a Behavioral Specialist and a member of the *Gibson* Action, there are no such allegations in the Complaint in this matter that indicate this to be the case. The Complaint merely alleges that Plaintiff was “employed by” and “worked for” Defendant. (e.g. ¶¶ 16, 20, 21, 22, 27.) There is no description of what type of work she performed nor her title while she was employed by Defendant.

It may well be true that Plaintiff was a Behavioral Specialist that is covered by the *Gibson* PAGA Settlement. The Court, however, cannot make that determination based on the pleadings and matters of which it is taking judicial notice. On this basis alone, the motion to strike must be denied.

Defendants seek to have numerous paragraphs (identified in the Notice) stricken to the extent they ‘seek relief for any period of time prior to October 1, 2024.’ None of the paragraphs cited, however, make explicit allegations seeking relief for a period prior to October 1, 2024. As observed by Plaintiff, the complaint does not plead a separate “PAGA period,” nor does it allege that the representative claim begins on a particular date.

Instead, the complaint alleges that Plaintiff worked for Defendant from approximately August 2023 to January 2025 and seeks relief for “violations committed against him during his time of employment.” (¶ 16.) While that timeframe does include dates prior to September 1, 2024, there are no specific allegations that can be stricken which directly relate to those dates.

For example, Plaintiff alleges: “At all material times set forth herein, Defendants failed to pay overtime wages to Plaintiff and the other aggrieved employees.” (¶ 40.) Defendants appear to argue that the ‘all material times’ cannot relate to any dates prior to October 1, 2024 – since those are covered by the *Gibson* PAGA Settlement. Even if the Court assumes that to be true (which at this point in the proceedings it cannot), there is nothing in that paragraph that can be stricken to specifically restrict the dates of the claims occurring on or after October 1, 2024.

Instead, it appears that Defendants would like to have the complaint rewritten to limit the timeframe for the PAGA claims to explicitly state they are limited to October 1, 2024, and thereafter. Code of Civil Procedure section 436 only allows a court to “strike” text from a pleading. It does not allow a court to rewrite the allegations of the Complaint.

If Defendants turn out to be correct, and the *Gibson* PAGA Settlement does apply to the claim in this matter, then the 'material times' allegations will be read to be limited to dates outside the scope of the *Gibson* PAGA Settlement. There is no need to have specific dates within the complaint to accomplish this goal.

Kelly Bozarth Allegations

The Court sustained Defendant Bozarth's demurrer to the Complaint. As such, her motion to strike is denied as moot.

Conclusion

Defendants' motion to strike is **denied**.

21. 9:00 AM CASE NUMBER: MSC21-00624
CASE NAME: COLEMAN VS YDESIGN GROUP, LLC
HEARING IN RE: COMPLIANCE
FILED BY:
TENTATIVE RULING:

This matter has been continued to September 17, 2026 at the parties' request.

22. 9:00 AM CASE NUMBER: N25-0895
CASE NAME:
***HEARING ON MOTION IN RE: DISQUALIFY DEFENSE FIRM**
FILED BY: ADCOCK, JAMES
TENTATIVE RULING:

The Court received a communication from Counsel for the moving party that the Notice of Motion with the hearing date had not been served and requesting a continuance. The Court did not receive any further documentation. Given, however, that it appears that the Motion was not properly served, it has been continued to August 13, 2026 at 9:00 am. Petitioner is ordered to serve notice of this amended hearing date. Opposition is due no later than July 31, 2026 and any Reply is due no later than August 6, 2026.

Discovery Law & Motion

23. 9:01 AM CASE NUMBER: MSC16-01118
CASE NAME: YUE VS. TRIGMAX SOLUTIONS
***HEARING ON MOTION FOR DISCOVERY SANCTIONS AGAINST DEFENDANT TRIGMAX SOLUTIONS, LLC**
FILED BY: YUE, DONGXIAO
TENTATIVE RULING: